

UPSC INDIAN POLITY

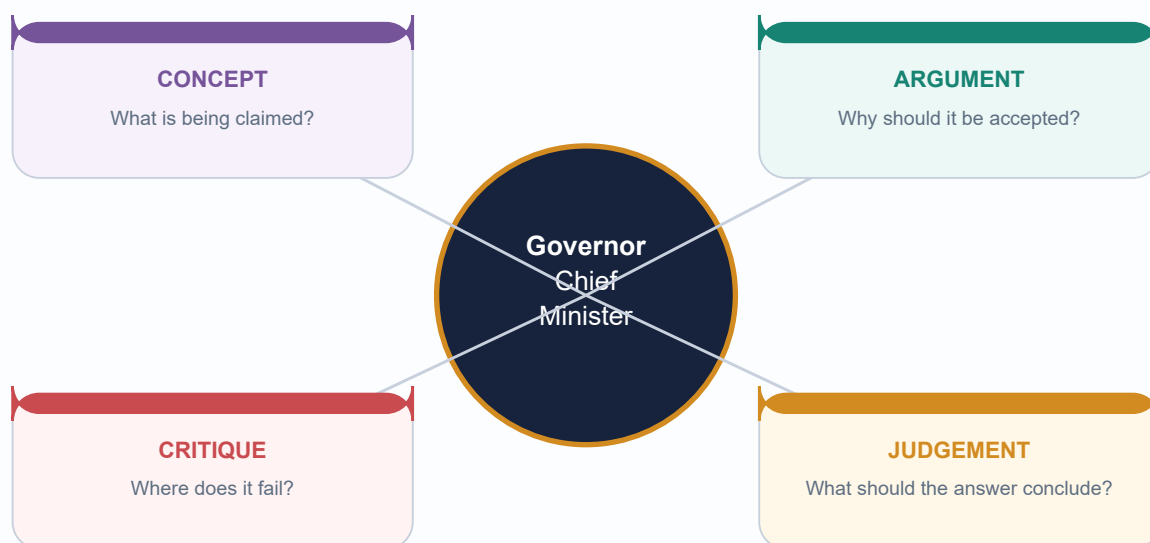
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity • GS Paper II • Prelims + Mains

Layer 1: Basic foundation • Layer 2: Advanced constitutional and exam depth

Sources: Governor-and-CM.md + 19_Governor-CM-State-Council.md

Learning cards: 19



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic · **GS Paper:** GS-II · **Grounded in:** Laxmikant Ch. 30–32.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• greater than ☐ book · ☐ inference · ☐ current. *Depth version: advanced/19_Governor-CM-State-Council.md.*

MUST-KNOW FACTS

1. greater than book · ☐ inference · ☐ current. *Depth version: advanced/19_Governor-CM-State-Council.md.*

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Governor	Chief Minister
Role	☐ Nominal head (de jure)	☐ Real executive (de facto)
Chosen by	Appointed by President	Appointed by Governor
Min age	☐ 35	25 (MLA) / 30 (MLC)
Tenure	5 yrs, but President's pleasure	Governor's pleasure (safe while holds majority)
Key articles	153–162	164, 167

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation • Core idea

GS-II Indian
Polity

INTRO & ORIGIN

□ States mirror the Centre's **parliamentary system**: the **Governor is the nominal head**, the **CM + Council of Ministers is the real executive** (Art 163). The CoM is **collectively responsible to the Legislative Assembly** (Art 164). The Governor plays a **dual role** — state head **and** the Centre's representative.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

Dimension 1

□ States mirror the Centre's parliamentary system: the Governor is the nominal head, the CM + Council of Ministers is the real executive (Art 163). Th

Dimension 2

greater than □ Governor ≠ President on 2 points: the Governor can act in discretion, and ministerial advice is

Dimension 3

greater than not expressly binding on him.

Dimension 4

greater than □ 91st Amdt: State ministers ≤ 15% of the Assembly, minimum 12.

STATIC THEORY

- greater than □ **Governor ≠ President on 2 points**: the Governor **can act in discretion**, and ministerial advice is
- greater than **not expressly binding** on him.
- greater than □ **91st Amdt**: State ministers ≤ **15% of the Assembly**, minimum 12.

MEMORY HOOK

greater than **Governor ≠ President on 2 points: the Governor can act in discretion, and ministerial advice is | greater than 91st Amdt: State ministers ≤ 15% of the Assembly, minimum 12.**

MUST-KNOW FACTS

1. States mirror the Centre's **parliamentary system**: the **Governor is the nominal head**, the **CM + Council of Ministers is the real executive** (Art 163). The CoM is **collectively responsible to the Legislative Assembly** (Art 164). The Governor plays a **dual role** — state head **and** the Centre's representative.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → Core idea

HIGH

Foundation · Governor's discretion (remember these)

GS-II Indian
Polity

INTRO & ORIGIN

□ **Express:** reserving a bill for the President; recommending President's Rule. **Situational:** appointing CM in a hung house; dismissing a CoM that lost confidence; dissolving the Assembly.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **Express:** reserving a bill for the President; recommending President's Rule. **Situational:** appointing CM in a hung house; dismissing a CoM that lost confidence; dissolving the Assembly.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Governor's discretion (remember these)

HIGH

Foundation · Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

□ Governor **nominates 1/6** of the Legislative Council; cannot **pardon** a death

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 □ Governor nominates 1/6 of the Legislative Council; cannot pardon a death	Dimension 2 sentence, but may suspend, remit or commute it under Art 161. Court-martial sentences remain outside Art 161.
Dimension 3 □□ A Governor is Chancellor of many state universities under the relevant state	Dimension 4 university statutes, not by virtue of the Constitution; models vary by state.

STATIC THEORY

- sentence, but may **suspend, remit or commute** it under Art 161. Court-martial sentences remain outside Art 161.
- □□ A Governor is Chancellor of many state universities **under the relevant state
- university statutes**, not by virtue of the Constitution; models vary by state.
- □ Non-MLA can be CM for **6 months**; CM may be from either House.
- □ CM chairs the State Planning Board; is a member of the **Inter-State Council & NITI Aayog**.

MUST-KNOW FACTS

1. Governor **nominates** 1/6 of the Legislative Council; cannot **pardon** a death
2. Non-MLA can be CM for **6 months**; CM may be from either House.
3. CM chairs the State Planning Board; is a member of the **Inter-State Council & NITI Aayog**.

MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → Must-Know Facts

HIGH**Foundation** · ☐ **Current link****GS-II** Indian
Polity**NEWS TRIGGER**

☐ ☐ **Current doctrine (20 Nov 2025, *In re: Assent, Withholding or Reservation of Bills*, 2025 INSC 1333):** Articles 200/201 contain no court-created rigid timelines or automatic deemed assent. Yet prolonged, unexplained and indefinite gubernatorial inaction is open to limited judicial scrutiny and mandamus. This later Article 143 opinion qualifies the timeline/deemed-assent reasoning in *State of Tamil Nadu v. Governor of Tamil Nadu* (8 Apr 2025). ☐ ☐ Full powers, discretion, traps & Mains angles: **advanced/19_Governor-CM-State-Council.md**

INTRO & ORIGIN

Exam-ready treatment of ☐ **Current link**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → ☐ **Current link**

HIGH**Advanced** · **Core Foundation****GS-II** Indian
Polity**INTRO & ORIGIN**

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP**Core Foundation****Dimension 1**

greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II

Dimension 2

greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 30–32 (direct check of the local Sixth Revised Edition PDF).

Dimension 3

greater than ☐ = from source book · ☐ ☐ = inference / case law · ☐ = current affairs.

Dimension 4

greater than Companion: basic/Governor-and-CM.md.

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MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → Core Foundation

HIGH**Advanced · PART A — THE GOVERNOR (Art 153–162)**

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PART A — THE GOVERNOR (Art 153–162).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → PART A — THE GOVERNOR (Art 153–162)

HIGH**Advanced · Appointment & conditions □**

GS-II Indian Polity

INTRO & ORIGIN

□ **Not elected** — **appointed by the President** by warrant (Canadian model, not the US elected-Governor model). A "nominee of the Centre" but (SC 1979) an **independent constitutional office**, not a Central-govt employee. **Qualifications (Art 157)**: citizen of India + **35 years**. Two **conventions** (often breached): be an **outsider** to the state, and appointed after **consulting the CM**. □ Not a member of Parliament/state legislature; no other office of profit; oath by the **HC Chief Justice**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → Appointment & conditions □

HIGH**Advanced · Term & removal** □**GS-II** Indian Polity**INTRO & ORIGIN**

□ **5-year term** but holds office during the **pleasure of the President** — **no security of tenure**, removable anytime, no grounds specified. Can be **transferred** and **reappointed**; continues till successor takes charge (no interregnum). □□ Mass changes after regime change (V.P. Singh 1989; Narasimha Rao 1991).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → Term & removal □

HIGH**Advanced · Powers** □**GS-II** Indian Polity**INTRO & ORIGIN**

□ Executive (all state actions in his name; appoints **CM, Advocate-General, State Election Commissioner, SPSC chair/members**; recommends President's Rule; often has a Chancellor/VC role **under state university statutes, not the Constitution**) · Legislative (summons/prorogues, dissolves Assembly; **nominates 1/6 of Legislative Council**; assents/returns/**reserves bills for President**; **ordinances Art 213**) · Financial (money bills need his recommendation; **State Finance Commission**) · Judicial (**Art 161** — cannot **pardon** a death sentence, but may suspend/remit/commute it; cannot deal with court-martial sentences, unlike the President).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → Powers □

HIGH**Advanced · Constitutional position & discretion** □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA**Constitutional (express) discretion**

- Reserving a bill for the President (Art 200)
- Recommending President's Rule
- Functions as UT administrator (additional charge)
- Sixth Schedule tribal royalty (Assam etc.)

Situational (implied) discretion

- Appointing CM in a hung Assembly / on sudden death
- Dismissing a CoM that has lost confidence
- Dissolving the Assembly if CoM lost majority

MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → Constitutional position & discretion □

HIGH**Advanced · Constitutional position & discretion** □

GS-II Indian Polity

INTRO & ORIGIN

- **Nominal executive** (Art 154, 163, 164). Unlike the President, (a) the Governor **can act in discretion**, and (b) **ministerial advice is NOT expressly binding** on him (no equivalent of the 42nd Amdt proviso).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ **Dual role:** constitutional head of the state **and** the Centre's representative — the structural source of Centre-state friction.

MUST-KNOW FACTS

1. **Nominal executive** (Art 154, 163, 164). Unlike the President, (a) the Governor **can act in discretion**, and (b) **ministerial advice is NOT expressly binding** on him (no equivalent of the 42nd Amdt proviso).
2. **Dual role**: constitutional head of the state **and** the Centre's representative — the structural source of Centre-state friction.

MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → Constitutional position & discretion □

HIGH**Advanced · PART B — CHIEF MINISTER (Art 164, 167)**

GS-II Indian Polity

INTRO & ORIGIN

□ **Real executive (de facto)** — head of government; parallels the PM. **Appointed by the Governor** (leader of majority; discretion in hung house / sudden death). Need not prove majority *before* appointment; **non-MLA CM allowed 6 months**; may be from **either House**. Holds office during Governor's pleasure but **can't be dismissed while he holds a majority**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → PART B — CHIEF MINISTER (Art 164, 167) □

HIGH**Advanced · Powers**

GS-II Indian Polity

INTRO & ORIGIN

□ **CoM**: recommends ministers, allocates/reshuffles portfolios, presides over CoM; his resignation/death **dissolves the whole CoM**. **Governor**: principal channel of communication (**Art 167**); advises on key appointments. **Legislature**: advises summoning/dissolution; announces policies. **Other**: chairs State Planning Board; vice-chairman of the **zonal council** (by rotation); member of **Inter-State Council & NITI Aayog Governing Council**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → Powers

HIGH**Advanced • PART C — STATE COUNCIL OF MINISTERS (Art 163, 164) □**

GS-II Indian Polity

INTRO & ORIGIN

□ **Art 163**: CoM (with CM as head) aids & advises the Governor, except where he acts in discretion. □ **Art 164**: CM appointed by Governor, other ministers on CM's advice; **91st Amdt (2003)**: total ministers **≤ 15% of the Assembly** and **not fewer than 12**; defector barred from ministership. **Collectively responsible to the Legislative Assembly**. Three ranks (Cabinet / State / Deputy). □ Compulsory **Tribal Welfare Minister** in Chhattisgarh, Jharkhand, MP, Odisha (Bihar excluded by 94th Amdt).

Advanced learning layer: concepts → constitutional detail → UPSC application.

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MAINS ANGLE**STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — **ADVANCED / COMPLETE** → **PART C — STATE COUNCIL OF MINISTERS (Art 163, 164) □**

HIGH**Advanced • UPSC Traps**

GS-II Indian Polity

INTRO & ORIGIN

suspension, remission or commutation; only the President has pardon power for death and court-martial sentences.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS**WRONG:** Governor is elected**CORRECT:** appointed by the President (min age 35, not 25).**WRONG:** Ministerial advice is binding on the Governor**CORRECT:** not expressly binding (no 42nd-Amdt equivalent).**WRONG:** Governor can pardon death sentences**CORRECT:** cannot pardon, though Art 161 permits**WRONG:** Governor nominates members to the Legislative Assembly**CORRECT:** nominates 1/6 to the Legislative Council (Anglo-Indian Assembly nomination now lapsed).**WRONG:** Governor has a fixed 5-yr tenure**CORRECT:** holds office during President's pleasure, no security of tenure.**WRONG:** State CoM cap is 15% of both Houses**CORRECT:** ≤ 15% of the Assembly, minimum 12 (91st Amdt).**WRONG:** A non-MLA can never be CM**CORRECT:** allowed for 6 months.**MAINS ANGLE****STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → UPSC Traps

HIGH**Advanced • CA hooks****GS-II** Indian
Polity**NEWS TRIGGER**

□ □ **Governor's assent — current doctrine:** *State of Tamil Nadu v. Governor of Tamil Nadu* (8 Apr 2025, 2025 INSC 481) prescribed timelines and used deemed assent in the facts before it. The later five-judge Article 143 opinion, *In re: Assent, Withholding or Reservation of Bills* (20 Nov 2025, 2025 INSC 1333), held that Articles 200/201 do not permit court-created rigid timelines or automatic deemed assent; prolonged, unexplained and indefinite inaction can nevertheless attract limited judicial scrutiny and mandamus. □ □ □ Recurrent **Governor vs elected government** friction (Tamil Nadu, Kerala, Punjab, West Bengal) — bill

INTRO & ORIGIN

delays, VC appointments, and use of discretion.

*Advanced learning layer: concepts → constitutional detail → UPSC application.***MAINS ANGLE****STUDY LINK**

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The Governor has become an agent of the Centre rather than a constitutional head." Critically examine. Should the Governor's discretionary powers be codified? (Sarkaria, Punchhi, Venkatachaliah recommendations.) Governor's role in bill assent after the 2025 Presidential Reference — balancing federalism & accountability.

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Mains angles

End of Register Notes — UPSC Agent / Copilot CLI